

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Harold Rodriguez	Team: Squad #11	CCRB Case #: 201809092	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 10/31/2018 9:18 AM	Location of Incident: Wheatley Avenue & Central Avenue; 101st Precinct stationhouse	18 Mo. SOL 12/15/2020	Precinct: 101		
Date/Time CV Reported Wed, 10/31/2018 6:28 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Wed, 10/31/2018 6:28 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Brian Cohen	19214	958416	101 PCT
2. POF Stacy Mosquera	31213	936429	101 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. LT Alvin Gomez	00000	906355	101 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Brian Cohen	Discourtesy: At Wheatley Avenue and Central Avenue in Queens, Police Officer Brian Cohen acted discourteously toward § 87(2)(b)	A . Unsubstantiated
B . POF Stacy Mosquera	Abuse: At the 101st Precinct stationhouse, Police Officer Stacy Mosquera did not process § 87(2)(b)'s complaint regarding an officer.	B . Unsubstantiated

Case Summary

§ 87(2)(b) called the CCRB on October 31, 2018 and filed the following complaint via the call processing system.

On October 31, 2018, at approximately 9:15 a.m., § 87(2)(b) was pulled over at the corner of Wheatley Avenue and Central Avenue, in Queens, by Police Officer Brian Cohen of the 101 Precinct. PO Cohen issued a summons for use of an electronic device and tried to hand it to § 87(2)(b). Since § 87(2)(b) argued that he was not on his phone, PO Cohen allegedly tossed the summons, license and registration onto the dashboard, above the steering wheel (**Allegation A – Discourtesy: Unsubstantiated**). On the same day, at approximately 6:00 p.m., § 87(2)(b) went to the 101st Precinct stationhouse and approached Police Officer Stacy Mosquera, who was giving Halloween candy to kids, and stated that he wanted to file a complaint against an officer. PO Mosquera then allegedly replied, “We’re closed.” (**Allegation B – Abuse of Authority: Unsubstantiated**). PO Mosquera wrote the phone number for the CCRB on a piece of paper and gave it to § 87(2)(b) which he used to file a complaint.

There is no video footage associated with this case.

Findings and Recommendations

Allegation A – Discourtesy: At Wheatley Avenue and Central Avenue in Queens, Police Officer Brian Cohen acted discourteously toward § 87(2)(b)

§ 87(2)(b) was driving to work while eating a sandwich and drinking coffee at 9:18 a.m. on October 31, 2018. He was pulled over by PO Cohen on the corner of Wheatley Avenue and Central Avenue in Queens and was accused of talking on a cellphone while driving. Although § 87(2)(b) argued with PO Cohen that he was actually eating and not talking on a cellphone, he provided PO Cohen with his driver’s license and registration. PO Cohen issued him a summons for using a mobile phone while operating a motor vehicle (Board Review 01). PO Cohen walked up to § 87(2)(b)’s driver’s side window and went to hand § 87(2)(b) the summons. § 87(2)(b) argued again that he was not on his phone. PO Cohen then tossed the summons, driver’s license and registration onto the dashboard, above the steering wheel and walked away.

PO Cohen recalled pulling over § 87(2)(b) for using a cellphone while driving. § 87(2)(b) argued that he was eating a piece of toast and not talking on his phone. PO Cohen brought the summons to § 87(2)(b) and did not recall the manner in which it was handed to § 87(2)(b). He denied tossing the summons onto the dashboard, but acknowledged that normally he would place the summons on top of the dashboard near the steering wheel if the motorist refuses to take it.

§ 87(2)(g)

§ 87(2)(b). It is therefore recommended that **Allegation A be closed as Unsubstantiated.**

Allegation B – Abuse of Authority: At the 101st Precinct stationhouse, Police Officer Stacy Mosquera did not process § 87(2)(b)’s complaint against an officer.

On the same day that § 87(2)(b) received the summons for allegedly using his cellphone, he went to the 101 Precinct stationhouse at 6:00 p.m. to file a complaint against PO Cohen. When he arrived at the stationhouse, he saw a black female police officer with long braided hair handing out candy to trick-or-treaters for Halloween. This officer was identified through the investigation

as PO Mosquera. § 87(2)(b) told PO Mosquera he wanted to file a complaint against an officer and she replied, “We’re closed.” After § 87(2)(b) argued that his treatment was unfair, PO Mosquera stated that he could not file a complaint there and had to call the CCRB. PO Mosquera then wrote the CCRB’s phone number on a piece of paper and gave it to § 87(2)(b) § 87(2)(b) threw the piece of paper away after calling the CCRB and did not provide it as evidence.

PO Mosquera was the telephone switchboard operator at the time of the incident and matched the description provided by § 87(2)(b). This description was provided to PO Cohen during his CCRB interview and he named PO Mosquera as matching the description and being one of the officers handing out candy that day.

PO Mosquera did not have any recollection of this interaction with § 87(2)(b). She recalled being one of the officers handing out candy that evening but did not recall anyone coming in to file a complaint. She was given a summary of the incident and shown a photo of § 87(2)(b) and it did not refresh her recollection.

Lt. Alvin Gomez was assigned to the front desk at the time of the incident and he also had no recollection of this interaction. A summary and photo of § 87(2)(b) did not help with his recollection.

§ 87(2)(g)
§ 87(2)(g). Therefore it is recommended that **Allegation B be closed as Unsubstantiated.**

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 02).
- PO Cohen has been a member of service for three years and has been a subject in three prior CCRB complaints and five allegations, none of which were substantiated. § 87(2)(g)
§ 87(2)(g)
 - 201606065 had allegations of force, refusal to provide name/shield allegations closed as Exonerated.
 - 201701822 had an allegation of discourteous action that was unsubstantiated.
 - 201707164 had an entry allegation which was closed – pending litigation.
- PO Mosquera has been a member of service for 14 years and has been a subject in seven other CCRB complaints and 11 allegations, none of which were substantiated.
 - 200604896 had a refusal to provide name/shield closed as unfounded and a discourtesy closed as unsubstantiated.
 - 200702976 had a force allegation closed as exonerated.
 - § 87(2)(b)
 - 201106832 had allegations of force and discourtesy and was withdrawn.
 - 201507487 had allegations of threat of force and discourtesy closed as unsubstantiated.
 - § 87(2)(b) 201900976 have allegations of threat of arrest. These two cases remain active.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- A Notice of Claim request was sent to the Office of the New York City Comptroller on January 25, 2019 and the results are still pending.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] .

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date